

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
STATE OF COLORADO

Case Nos. 2014-3749 & 2015-1702

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JULIE
SUGIOKA, LICENSE NO. LPC 3847,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners ("Board") and Julie Sugioka ("Respondent"), as follows:

1. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado on September 8, 2004, having been issued license number LPC 3847 and is currently so licensed.
2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the complaints in case numbers 2014-3749 and 2015-1702 without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2014-3749 and 2015-1702. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around January 2016, Respondent submitted to an evaluation.
 - b. The evaluator recommended that Respondent continue with her psychotherapy and current medication protocol.
 - c. Respondent failed to notify the Board of a physical or other condition that affects her ability to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that the above conduct is a violation of §12-43-222(1)(f)(I), C.R.S.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for five (5) years commencing from the effective date of this Order or the date Respondent's therapy monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in this state, and the period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a professional counselor in Colorado, is being monitored by a therapy monitor, and is in full compliance with all terms of this Order.

10. If Respondent has adhered to all terms and conditions of this Order, and in the event that Respondent's therapist agrees, Respondent may request termination of probation and the therapy monitor requirement. Request for termination of probation and the therapy monitoring requirement must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied the terms and conditions of probation and therapy monitoring requirement. It is at the Board's discretion whether or not to approve Respondent's request to terminate probation and the therapy monitoring requirement.

PSYCHOTHERAPY

11. During the term of probation, Respondent shall undergo psychotherapy, including medication management, with a mental health provider(s) approved by the Board ("therapist"). Within 30 days of the effective date of this Order, Respondent shall submit, in writing, up to three proposed therapists for the Board's approval. Respondent shall include a program-approved therapist application from each potential therapist, with attached curriculum vita or resume. The therapist shall meet the following criteria:

- a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the therapist have a minimum of five (5) years of experience and has not been subject to professional discipline;

- c. The therapist shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12. After the Board's written approval of the therapist, Respondent and the therapist shall enter into a written contract for psychotherapy. Respondent shall not perform any act requiring a license to practice professional counseling until such time as the Board has approved Respondent's therapist and Respondent and therapist have entered into a written contract for monitoring.

13. The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Board based on recommendations of the therapist;
- b. The therapist shall report to the Board in writing of the progress of the psychotherapy, including medication management, and whether Respondent is able to practice with reasonable skill and safety for her clients, and must send a copy of each report to Respondent. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every month thereafter for the first 12 months. After submission of the first 12 reports, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and
- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and the therapy evaluator's report, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Respondent's therapist.

14. If, at any time, the therapist is of the opinion that Respondent is practicing professional counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders her unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming his/her opinion. The therapist shall send a copy of such report to Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

15. Either Respondent or her therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another

Board-approved therapist prior to the termination, Respondent shall cease the practice of professional counseling until she has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

16. Respondent cannot practice professional counseling during the period of probation if she is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

TERMS AND CONDITIONS

17. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

18. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

19. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

20. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

21. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

22. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

23. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

24. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

25. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary

action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

26. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

27. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

28. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT


JULIE SUGIOKA
LPC NO. 3847

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


CATHERINE RODRIGUEZ
Program Director

Effective this 2 day of

November, 2016.